ATTENTION: JUDGE ARLENE GORDEN-OLIVER

DATE: AUGUST 5, 2019

RE: Stephen Walsh Subpoena Ad Testification for August 6, 2019 at 2:00 p.m.

FILE NUMBER: 154703

CC: Brian Waller, Brian.Waller@thompsonhine.com

Public copy: the child's legal name is shown as E.V.; a private street address is removed. Otherwise unchanged.

Stephen Walsh
[redacted]
Chappaqua, New York 10514-2328

August 5, 2019

Honorable Arlene Gordon -Oliver
Westchester Family Court-White Plains
111 Dr. Martin Luther King Jr. Blvd.
White Plains, NY 10601

Dear Judge Gordon-Oliver:

I write to request that the court address a subpoena that was served on my wife at my home on Friday afternoon by a process server hired by Stephen Russell. The document directed that I appear in court on Tuesday, August 6, 2019 to provide testimony at a hearing. I believe this subpoena is yet another effort to harass and threaten my family by Stephen Russell and his attorneys. On Friday, my wife was home when she turned around in the kitchen to observe a man on the back deck of the home. She was frightened and with our granddaughter E.V. in her arms approached the door to inquire. The man (who I later learned was a process server hired by Stephen Russell) asked for me and when my wife advised I was not home he went back to his car parked in the rear of our property. He made a phone call and returned to the back deck, despite the fact my wife asked him to leave our property.

I ask that you address whether this was at all appropriate and that you dismiss the subpoena for my appearance. I do not believe it was right that without notice or cause an individual hired by Stephen Russell thinks it is okay to enter our property, walk onto the back deck, and not leave when asked to do so.

I ask that you direct Stephen Russell to seek court permission prior to sending a subpoena to me or any member of my family in the future because he does not act for appropriate reasons but to harass, threaten and intimidate. Also, serving me with a subpoena on Friday to appear in court for a hearing the following Tuesday is unjustified, especially when there is no hearing scheduled. He should not be able to use the court system in this way.

I am sorry to impose upon your time to deal with this but without court intervention I do not know any other reasonable way to deal with this. In addition, I was caused to go the emergency room on Saturday, admitted and I am currently hospitalized and unable to attend court on Tuesday. Thank you for your time.

Sincerely,

Stephen Walsh